

WHITE, J., concurring in judgment

424 U.S.

officials as a class cannot be immune absolutely from damage suits under 42 U. S. C. § 1983 and that to extend absolute immunity to any group of state officials is to negate *pro tanto* the very remedy which it appears Congress sought to create. *Scheuer v. Rhodes*, 416 U. S. 232, 243 (1974). Thus, as there is no language in 42 U. S. C. § 1983 extending *any* immunity to any state officials, the Court has not extended *absolute* immunity to such officials in the absence of the most convincing showing that the immunity is necessary. Accordingly, we have declined to construe § 1983 to extend absolute immunity from damage suits to a variety of state officials, *Wood v. Strickland*, 420 U. S. 308 (1975) (school board members); *Scheuer v. Rhodes*, *supra* (various executive officers, including the State's chief executive officer); *Pierson v. Ray*, 386 U. S. 547 (1967) (policemen); and this notwithstanding the fact that, at least with respect to high executive officers, absolute immunity from suit for damages would have applied at common law. *Spalding v. Vilas*, 161 U. S. 483 (1896); *Alzua v. Johnson*, 231 U. S. 106 (1913). Instead, we have construed the statute to extend only a qualified immunity to these officials, and they may be held liable for unconstitutional conduct absent "good faith." *Wood v. Strickland*, *supra*, at 315. Any other result would "deny much of the promise of § 1983." *Id.*, at 322. Nonetheless, there are certain absolute immunities so firmly rooted in the common law and supported by such strong policy reasons that the Court has been unwilling to infer that Congress meant to abolish them in enacting 42 U. S. C. § 1983. Thus, we have held state legislators to be absolutely immune from liability for damages under § 1983 for their legislative acts, *Tenney v. Brandhove*, 341 U. S. 367 (1951),¹ and state

¹ The Court emphasized that the immunity had a lengthy history at common law, and was written into the United States Constitution